

HRMAGIX008 - Notice Period Policy

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🔍 Reviewed by: Rahul R Jadhav

1. Purpose

The Notice Period Policy of HR Magix establishes guidelines for providing advance notice of termination or resignation by employees.

The purpose of this policy is to ensure a smooth transition and maintain operational continuity within the organisation.

2. Scope

This policy applies to all employees of HR Magix, including full-time, probationary, and contract employees, unless otherwise specified in their employment agreement.

3. Notice Period Requirements

3.1 Resignation by Employees

- Employees must provide a written notice of resignation (email) to their immediate supervisor or the HR department.
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- Notice period for resignation:
 - 1 month for all full-time employees.
 - 15 days for employees on probation and Interns (first 3 months from DOJ).
- Employees are expected to fulfil their job responsibilities and facilitate a smooth transition during the notice period.
- Employees unable to serve their notice period can opt for a Notice Period Buyout by compensating for the unserved days.

3.2 Termination by the Company

- The company may terminate employees for reasons including poor performance, misconduct, or operational requirements.
 - (Refer to the Employee Termination Policy for details.)
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4. Exceptions

The company reserves the right to waive or modify notice period requirements based on:

- Mutual agreement between the employer and the employee.
 - Immediate termination due to gross misconduct.
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5. Pay in Lieu of Notice

- The company may provide pay in lieu of notice based on the employee's position, length of service, and applicable laws.
 - Pay in lieu will be calculated based on the employee's regular CTC for the notice period.
 - Exceptions may apply where pay in lieu is not provided, such as cases of gross misconduct or mutual agreement to waive notice.
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6. Leave Adjustment During Notice Period

- Applies to all permanent employees serving their notice period.
 - Employees may request leave adjustment to shorten their notice period, subject to:
 - Availability of leave balance.
 - Management approval.
 - Any remaining unadjusted notice period must be served or settled as per the policy.
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7. Employee Responsibilities During Notice Period

- Fulfil all job responsibilities and complete pending assignments.
 - Assist in transitioning work to successors or other team members.
 - Maintain regular attendance, punctuality, and productivity.
 - Leaves during the notice period are generally prohibited unless in exceptional circumstances.
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8. Compliance with Legal Requirements

- This policy complies with applicable labour laws governing termination and resignation.
 - Employees failing to serve the required notice period must compensate by paying an amount equivalent to one month's CTC.
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9. Full and Final Settlement Process

9.1 Unpaid Salary

- Outstanding salary for the final working month will be processed after the necessary deductions.

9.2 Gratuity (If Applicable)

- For employees completing 5 years of continuous service, gratuity will be settled as per law.

9.3 Deductions

- Any unreturned company assets, pending loans, advances, or other deductions will be considered during final settlement.
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10. Timeline

- Final settlement will be initiated upon successful completion of exit formalities.
 - The entire settlement process, including disbursement of payments, will be completed within 45 days from the employee's last working day.
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11. Communication

- HR will communicate notice period requirements during onboarding and throughout employment.
 - Employees are encouraged to seek clarification regarding their notice period obligations from HR.
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12. Policy Review

This policy will be periodically reviewed by the HR department to ensure legal compliance and alignment with evolving company practices.

13. Conclusion

By adhering to this Notice Period Policy, HR Magix ensures transparent, professional transitions during resignations and terminations, contributing to a positive work environment and operational efficiency.
